



May 7, 2024

Ref: IIH/PROJ/2024/05/002

Atmos Integrated Services Ltd/Samsung Electronics West Africa
Temple Towers, 14th Floor, 16 Olu Holloway Street, Ikoyi, Lagos

Attn:
Abiodun Ajeigbe

Dear Sir,

LETTER OF AWARD FOR THE SUPPLY, INSTALLATION AND COMMISSIONING OF CENTRAL COOLING SYSTEM AT ILORIN INNOVATION HUB BUILDING IN ILORIN, KWARA STATE

We refer to the proposal and quotation submitted by Atmos Integrated Services Ltd/Samsung Electronics West Africa ("Atmos Integrated Services Ltd/Samsung Electronics West Africa" or "Contractor") to Geniserve Limited ("Project Manager") representing IHS Nigeria Ltd and Ilorin Innovation Hub Ltd jointly referred to as the ("Client") for the supply, installation and commissioning of a Central Cooling System ("Service") in connection with the construction of the Ilorin Innovation Hub facility in Ilorin, Kwara State ("Project").

Following our review of the submitted Documents and consideration of Atmos Integrated Services Ltd/Samsung Electronics West Africa's express confirmation of its understanding of the scope of the Project and the Services, the Ilorin Innovation Hub is pleased to inform Atmos Integrated Services Ltd/Samsung Electronics West Africa of its selection as the preferred contractor for the provision of the Services and hereby issue this letter of award ("Award Letter") to the Contractor ("Award").

The scope of the Services shall include supply, installation, integration and commissioning of Central Cooling System solution by Atmos Integrated Services Ltd/Samsung Electronics West Africa and in accordance with the design and technical specifications which agreed upon by Client directly or through its designated consultants in pursuance of the Project.

By virtue of this Award Letter, Atmos Integrated Services Ltd/Samsung Electronics West Africa is expected to procure the delivery of the equipment required for the Service and shall install and commission the Services within 8 weeks from the date of this award letter ("Delivery Date"). The Client shall charge daily liquidated damages of one percent (1%) of the value of the applicable Services or part thereof for any delay on the part of Atmos Integrated Services Ltd/Samsung Electronics West Africa on the delivery of the Services, or any part thereof, subject to a total cap of ten percent (10%) of the contract sum.

As consideration for the performance of the Service, the Client shall pay a total sum of ~~N~~767,435,424.80 (Seven hundred sixty-seven million four hundred thirty-five thousand four hundred twenty-four naira and eighty kobo), the "Contract Price"). The Contract Price shall be subject to the applicable tax and is payable in accordance with the following terms:

- a) Advance payment of Eighty percent (80%) in the sum of ~~N~~613,948,339.84 (Six hundred thirteen million nine hundred forty-eight thousand three hundred thirty-nine naira and eighty-four kobo)



stated hereinabove immediately upon the acceptance of this Award Letter and the presentation by Atmos Integrated Services Ltd/Samsung Electronics West Africa of an advance payment guarantee ("APG") in an amount equal to the sum being advanced from a reputable bank acceptable to the Client.

- b) Payment of Twenty percent (20%) in the sum of ₦122,789,667.97 (One hundred twenty-two million seven hundred eighty-nine thousand six hundred sixty-seven naira and ninety-seven kobo) being the balance of the Contract Price shall become payable only upon the deployment, completion, testing, commissioning and issuance of the test certificates and system warranties in respect of the Service by the Client.

The Contract Price represents the maximum amount to be charged for the provision of the Service and is not subject to any upward review either arising from fluctuation and variation of the scope of the Service or any additional material request by the Contractor. Atmos Integrated Services Ltd/Samsung Electronics West Africa shall provide Two (2) years equipment warranty for the Service, which shall be effective from the date of final commissioning of the Service and shall cover the cost of all infrastructure requirement deployed for the Service.

The Award is not transferrable and is subject to the execution of a definitive agreement by the Client and Atmos Integrated Services Ltd/Samsung Electronics West Africa, further to this Letter of Award, setting out in specific details the terms and conditions including, but not limited to, the scope of Atmos Integrated Services Ltd/Samsung Electronics West Africa's work, the Service deliverables, payment terms and relevant milestones, etc ("Contract Document"). The Client and Atmos Integrated Services Ltd/Samsung Electronics West Africa shall use their reasonable endeavor to ensure that such Contract Document, together with any relevant annexures is accordingly executed as soon as practicable. Pending the execution of the Contract Document, this Award Letter shall herefor, be the substantive document prescribing the rights and obligations of the Client and Atmos Integrated Services Ltd/Samsung Electronics West Africa.

Kindly indicate your acceptance of this Letter of Award by endorsing the memorandum of acceptance attached herewith and returning it to the Client, together with an endorsed copy of this letter. The Letter of Award and the terms herein shall be deemed withdrawn by the Client if it is not accepted by the Contractor on or before 8 May, 2024. Atmos Integrated Services Ltd/Samsung Electronics West Africa shall within Five (5) days from the date of receipt of this Letter of Award and the purchase order provide the Client with its statement of work and final installation drawing in respect of the Service.

Please accept our congratulations.

Yours sincerely,

Temi Kolawole
Managing Director

Gbenga Adegbiyi
For Geniserve Ltd (Project Manager)



MEMORANDUM OF ACCEPTANCE

The undersigned, being duly authorized to do so, hereby accepts this Letter of Award, together with the terms and conditions contained herein, for an on behalf of the Contractor.

For and behalf of the Client.

Signature _____

Name _____

Designation _____

Date _____